Types of Torts

- Intentional Tort
- Negligent Torts
- Strict Liability Torts



Law of Tort and Easement LL.B III

Introduction

- Tort is a violation of some civil duty. A tort is a civil wrong committed by one party against other party, in which the injured party can take legal action for recovery of damages.
- Tort has two main objectives, one is compensation of the person wronged for any damages and second objective is recover money from wrong doer which is financial punishment for him.
- Such wrong against which no compensation is recoverable, is not a tort.
- The law of tort is based on common law.

Law and Wisdom

Meaning of tort

The word tort has been derived from Latin word “Tortum” which means to conduct

Definition of Tort

A tort is an act which injures someone in some way and accordance with the injured person can take legal action against wrong doer for recovery of damages

Wrongs which are not tort

1) Criminal wrongs

2) Breach of contracts

3) Breach of trust

Law and Wisdom

Types of Tort

Intentional Torts

Negligent Torts

Strict Liability Torts

Intentional torts

- An intentional tort occurs when the defendant knowingly intended to cause harm to someone else.
- This can be in the form of physical harm as well as emotional distress. It can also apply when intentional property damage occurs.

Examples of intentional torts include:

Assault (threat)

In tort law, assault means that someone threatened or attempted to harm another person, but did not actually touch them.

Battery (physical attack)

While assault is a *threat* of violence, a battery occurs when someone follows through on that threat and physically contacts another person. The contact can be either harmful or offensive. Someone who commits battery can face both civil and criminal charges.

Law and Wisdom

False Imprisonment

If someone restricts another person’s ability to move freely, then that can be classified as false imprisonment.

False imprisonment can be physical (i.e., use of restraints) or through unreasonable duress or coercion.

Trespass to Land

Trespass to land occurs when a person intentionally enters someone else's property without permission.

In these cases, the plaintiff must show that the trespass happened without their permission.

Intentional infliction of emotional distress

As a practical joke, someone threatens to expose nude pictures they say they have of you to your family, friends, and colleagues resulting in nervous shock and illness

Law and Wisdom

Fraud/deceit

You're a well-known antique dealer and bought an expensive antique for a client that was fraudulently represented as an original and turned out to be a clever reproduction resulting in damage to your professional reputation.

Defamation

A coworker spreads lies about you via a corporate Zoom meeting resulting in harm to your reputation at work.

Conversion

A conversion occurs when a person without authority or permission intentionally takes the personal property of another or deprives another of possession of personal property. It is a **tort** which allows the injured party to seek legal relief.

Law and Wisdom

Negligent Torts

- Instead of intentionally injuring someone, a negligent tort involves injuries caused by acts like **distracted driving, failure to act, or careless actions** where a person breaches a duty owed to another..
- In other words, the harm caused to another happened unintentionally, but in a situation where the law recognizes an obligation to make it right.
- Many personal injury cases fall under this category, such **as car accidents, medical malpractice, slip and fall injuries**, and more.

Law and Wisdom

In order to be eligible to claim damages under negligent torts, the plaintiff must demonstrate a violation of four elements of this tort, which are:

Duty: The defendant has some kind of duty to another person. For example, someone driving a car has a duty to operate it properly.

Breach of Duty: That duty was breached in some way. If one fails to operate their car properly and hits the plaintiff, then they have failed their duty.

Causation: The plaintiff must show that the breach of duty directly caused the incident that happened to them or their loved one.

Injury: The incident caused an injury to the plaintiff or a member of their family.

Law and Wisdom

Strict Liability Tort

- Strict liability is a legal doctrine that holds a party responsible for their actions or products, without the plaintiff having to prove negligence or fault. When someone partakes in ultrahazardous activities such as keeping **wild animals, using explosives, or making defective products**, then they may be held liable if someone else is injured.
- Even if the defendant took necessary precautions and followed safety requirements, strict liability crimes are unique in that they would still hold the defendant responsible. Due to the nature of the activity, the defendant should be able to foresee that a person could be harmed by it.

Law and Wisdom

Strict liability tort real-life examples

Attack by a wild animal – You visit a private zoo. One of the animals was not properly secured, and you are injured in an attack.

Design defect – You buy a trendy new 3-legged chair, but the design causes you to tip over while sitting, and you sustain injuries.

Manufacturing defect – A batch of vitamins you purchased is contaminated with a poisonous chemical. You become sick as a result.

Law and Wisdom

The End

Law and Wisdom